

Introducing Broker Agreement

推荐经纪人协议书

Trademax Global Limited
VFSC 40356

DATE OF AGREEMENT **['Effective Date]**
协议日期 （'有效日期'）

PARTIES
协议双方

Trademax Global Limited, an International Company incorporated and registered under the laws of the Republic of Vanuatu (Registration No: 40356), having its registered office at 1276, Kumul Hwy, 1st Floor, Govant Building, Port Vila, Vanuatu (hereinafter referred to as the "**Principal**" or "**Trademax Global**").

Trademax Global Limited, 根据瓦努阿图共和国法律注册成立并注册的国际公司（注册号: 40356），其注册办事处位于 1276, Kumul Hwy, 1st Floor, Govant Building, 维拉港, 瓦努阿图（"**委托人**" 或 "**Trademax Global**"）。

AND
和

[Individual]
个人推荐人

_____, (个人推荐人姓名) of _____(地址),

I.D. / Passport No. _____
(身份证号码/护照号码)

OR
或

[Company]
（公司推荐人），

_____, a company incorporated in
_____(公司注册地）。

Company Registered No.
公司注册号

Hereinafter referred to as **the Introducer**.
后文中以**推荐人**指代。

INTRODUCTION

引言

The Introducer wishes to supply information about the Principal to persons and to refer persons as clients or potential clients to the Principal.

推荐人同意向客户介绍 Trademax Global 相关信息，同时向 Trademax Global 推荐客户。

AGREEMENT

协议

1. **Definitions**

   定义

Introducing Broker **推荐经纪人**	This means any Introducer that the Principal may choose for the provision of services subject to this Agreement. 指公司可能选择提供受本协议约束的服务的任何推荐人。
Client **客户**	This means any person that has been approved to open an account(s) (irrespective of type) with the Principal that is referred to the Principal by the Introducer. 指经推荐人推荐给 Trademax Global 的获准在本 Trademax Global 开立账户(无论账户类型)的任何人。
Person **当事人**	Individual(s), partnership(s) and/or company(ies). 个人，合伙关系，或者公司。
Legislation **法规**	All Acts, Regulations, Codes of Practice and any relevant circular, directive, policy statement and the like issued by any government which apply to the provisions of this Agreement, including the International Companies Act (CAP 222), Financial Dealers Licensing Act (CAP 70) and Dealers in Securities (Licensing) Act (CAP 70) of the Republic of Vanuatu. 一切法案、条例规定、业务法规以及任何相关的通知、指令、政策声明和由任何政府颁布的适用此协议的规定，包括瓦努阿图共和国的 “国际公司法”（CAP 222）“金融交易商许可法” (CAP 70) 和 “证券交易商（许可）法（CAP 70）。
Confidential Information **信息保密**	Information concerning the organization, business, finances, clients, suppliers, employees, affairs, transactions, trade secrets, operations, processes or dealings of the Principal which is not in the public domain and which is or may be received by the Introducer in connection with this Agreement.

推荐人通过此协议可能获得的和 Trademax Global 相关的组织、商务、财务、客户、供应商、员工、事务、业务、商业机密、运营、流程或者交易方面的信息。

Trademark
商标

This means the Principal's and/or the Introducer's registered trademarks, including all other related trademarks as they are locally and internationally recognised and protected under international and local laws.

指 Trademax Global 和/或推荐人的注册商标，包括所有其他相关商标，因为它们在本地和国际上得到认可并受国际和当地法律保护。

2. Relationship
关系

a. This Agreement constitutes the entire Agreement between the Parties and no earlier representation or arrangement or agreement written or oral relating to any matter dealt with in this Agreement between the Parties shall have any force or effect before the Commencement date.

本协议构成双方之间的完整协议，双方之间在本协议中处理的任何事项的任何书面或口头陈述或协议均不得在生效日期之前产生任何效力或效用。

b. The Introducer must not do or say anything that will or is likely to damage or diminish the Principal's business reputation or brand name. This clause will survive the expiry or termination of this Agreement.

推荐人不能有任何将会或者可能会损害或者削弱 Trademax Global 企业名誉或者品牌的言论或行为。这个条款将在本协议期满或者终止后一直有效。

c. The Introducer must not at any stage, verbally, in writing or displayed on any form of communication, including marketing material, websites or any form of electronic media, that they are more than a referrer of the Principal and especially any reference that they are an Authorised Representative or in some way an authorised or recognised party of the Principal. The relationship is strictly between the Principal and the Introducer and noother party.

推荐人在任何阶段的口述、书面或者任何其他交流方式，包括营销材料、网站或者任何方式的电子媒体，不能超越双方推荐关系的合作形式，尤其不能引用推荐人是 Trademax Global 的授权代表或者是 Trademax Global 以任何方式的授权或许可方的言论和文字。协议双方应严格限制在推荐关系，不存在任何其它关系。

d. The Introducer acknowledges that he is not allowed to register a business that includes the "**Trademax Global**" and/ or "**TRADEMAX**" and/or "**TMGM**" name. Furthermore, the Introducer acknowledges that he is not allowed to register and/or

operate a domain name that includes the "**Trademax Global**" and/ or "**TRADEMAX**" and/or "**TMGM**" name.

推荐人承认其注册的商业名称不能包含"**Trademax Global**"和/或者 "**TRADEMAX**" 和/或者"**TMGM**" 的字样。此外， 推荐人承认其注册和/ 或者运行的域名不能包含"**Trademax Global**"和/或者 "**TRADEMAX**" 和/或者 "**TMGM**"的字样。

e. The Principal may at its sole discretion accept or decline any Client introduced by the Introducer.

Trademax Global 可以自行决定接受或者拒绝推荐人介绍的任何客户。

f. In the event that a Client, initially introduced by the Introducer, remains inactive (without any trading activities) for a period exceeding 12 months, the relationship between the Client and the Introducer may be considered invalid and non-binding. Any attempt by the Introducer to re-establish this relationship with the Client may also be considered null and non-binding, and any activities related to this attempt will be deemed null and void.

如果由推荐人最初介绍的客户在12个月内没有任何交易活动，则该客户与推荐人的关系可能被视为无效和不具约束力。推荐人尝试重新建立与客户的关系的任何举动也将被视为无效

g. The Principal is not liable or responsible for any marketing and promotions initiated by the Introducer and for any costs or charges for such activities. The costs will be met by the Introducer.

Trademax Global 对于推荐人发起的市场营销和促销以及这些活动产生的任何费用或者收费不承担任何责任和义务。这些费用将由推荐人来承担。

3. Introducer Representation and undertaking
推荐人的承诺与保证

a. The Introducer will act as a mediator between the Principal and his referred Clients for introducing and/or explaining the services offered by the Principal to his Clients. As a mediator, the introducer will do all that is necessary in order for the Principal and his Clients to enter into a contract including but not limited to carrying out the preparatory work necessary for the conclusion of an agreement between the Principal and the Client.

推荐人作为 Trademax Global 和其所推荐客户的中间人来介绍和/或者解释 Trademax Global 向客户提供的服务。作为中间人，推荐人要完成所有必要的工作以达成 Trademax Global 和所推荐客户合同的签署， 这些工作包括但不限于推荐人为 Trademax Global和客户的协议完成所做的必要准备工作。

b. The Parties agree that nothing in this Agreement creates a relationship between them of employer/employee, principal/agent, a joint venture or a partnership, and each party shall be solely responsible for its own action or inaction. The Introducer is the agent of the Client it refers to Trademax Global and in that capacity is not the agent of Trademax Global. In performing the Introducing Broker Services under this Agreement, the Introducer is an independent contractor and as such is liable for any taxes, insurance contributions or any other assessments incurred by it in the course of business generally and in relation to this Agreement. Any existing agreements of a similar nature to this Agreement between the Introducer and Trademax Global are hereby cancelled except in respect of any pre-existing debts or benefits accrued under them.

双方一致同意，本协议不构成雇主/雇员、委托人/代理人、合资企业或合伙关系，各方应对自身的行为或不作为承担独立责任。推荐人是代表其介绍的客户与 Trademax Global 公司进行交易，但并非作为 Trademax Global 公司的代理人。在执行本协议下的推荐人服务时，推荐人是独立承包商，因此应对其在一般业务及与本协议相关的任何税费、保险费或其他费用负责。推荐人与 Trademax Global 之间的任何与本协议类似性质的现有协议均被取消，但对于在此类协议下已存在的债务或权益除外。

c. The Introducer hereby undertakes to introduce prospective Clients with regard to the services offered by the Principal as specified in the **Principal's Disclosure Documents** (which shall include the Principal's Client Agreement, Client Application Form, and Risk Warning Notice). For the introduction of clients, the Introducer will endeavour and will carry out all necessary actions so as for the Principal to enter into an agreement with the referred Client.

推荐人特此将 Trademax Global 披露文件（包括 Trademax Global 的客户协议，客户开户申请及风险警告通知）中规定的服务介绍给潜在客户。推荐人要致力于并采取所有必要的行动以达成 Trademax Global 与所推荐客户签订协议。

d. The Introducer shall not provide any financial product advice or portfolio management services to his Clients. The Principal is not responsible and has no liability for any advice or recommendation or decision provided by the Introducer to the client.

推荐人不能向其推荐的客户提供任何金融产品建议或投资组合管理服务。对于推荐人向客户提供的任何建议或推荐或决定，Trademax Global 概不负责。

e. For the Introducer to be eligible for any fees with regards to the introduced Client, he must meet all requirements set in this Agreement, as well as the Introducer must ensure that he has mediated so as for the prospective Client and the Principal to enter into an agreement before the prospective Client opens an account with the Principal without the Principal utilising the distinct act of the mediation of the Introducer.

推荐人必须满足此协议规定的所有要求才有资格取得推荐客户相关服务费，推荐人同

时必须保证并能够证明潜在客户是通过其推荐活动而与Trademax Global签署协议。

f. The Introducer is obliged to inform his introduced Clients of any fees or benefits received as well as any additional fees involved with regard to the service provided under this Agreement.
推荐人有义务告知所推荐客户其在根据协议规定的推荐活动中取得的任何收入或者福利，及其它相关收入。

4. Introducers Obligations
推荐人的义务

a. The Introducer has all requisite authority to enter into this Agreement and to be fully bound hereby, and all necessary action has been taken by him in connection herewith. The Introducer acknowledges and confirms that he can enter into this agreement and is approved and/or authorised and/or qualified under his local regulatory requirements to offer the service mentioned in this agreement. Where authorisation is required, the Introducer does take or will take steps to ensure it is appropriately authorised to perform the services under the Agreement.
推荐人具有签订此协议的所有必要的授权和束约，并采取了所有必要的与此相关的行动。推荐人承认并确认其能够签订这个协议，并且在其所在地区监管要求下，被批准、授权和/或者符合相关资格提供协议规定的服务。在需要授权的情况下，推荐人采取或者将会采取措施以确保推荐人是在规范的授权下执行此协议规定的服务。

b. The Introducer must (and must ensure its employees and their representatives) comply with the Principal's codes of practice, systems, policies and procedures and any reasonable direction as may be notified from time to time.
推荐人必须（并且必须确保其员工及其代表）遵守 Trademax Global 的执业规范、制度、政策和程序以及任何不定时通知的合理的指导和说明。

c. The Introducer is responsible for ensuring the accuracy of client attribution and its commission rates. It is the Introducer's duty to verify these details and maintain their correctness. The Introducer acknowledges and accepts that Principal will only trace the client's trading history for a period of up to the last 30 days for the purpose of commission adjustments. Any inaccuracies or discrepancies beyond this period will not be subject to adjustments by Principal.
推荐人需确保客户归属和佣金率的准确性。推荐人明白并接受，Trademax Global 只会对客户最近30天的记录的交易历史进行佣金调整。超过此期限的任何误差或不一致，Trademax Global 将不予调整。

d. If the Introducer is a company or other entity, the Introducer is duly organised, validly

existing and in good standing under the laws of his jurisdictions.
如果推荐人是一家公司或其它实体，推荐人必须合法成立，有效存在并在其司法管辖区具有良好的声誉。

e. The Introducer will permit the Principal to conduct audits of its activity under this Agreement and will provide the Principal with access to all relevant personnel files, correspondence, promotional material and other documents of any kind for this purpose upon request. The introducer will obtain any necessary consent to disclose personal information held in the documents it supplies to the Principal.
推荐人允许 Trademax Global 对其在此协议中规定的活动进行审查，并向其提供相关的人事文件、信函、宣传材料和其他文件。根据相关隐私保护法，推荐人应具有披露文件中相关个人信息的同意或授权。

f. Introducer shall not issue, publish or disseminate (electronically or otherwise) any advertisement, marketing or promotional material referring to the Principal (or its affiliates) or its products or services without the Principal's prior consent. The Principal reserves the right at any time to withdraw its approval of promotional material by the Introducer. And if the Principal withdraws its approval to the approval of promotional material by the Introducer, Introducer undertakes to immediately stop distributing such promotional material.
推荐人不能在未经 Trademax Global 事先同意的情况下发行、发布或者传播（电子或者其他方式）任何涉及 Trademax Global（或者其附属机构）或其产品和服务的广告、市场或者宣传材料。Trademax Global在任何时候都保留撤回其对推荐人宣传材料批准的权利。如果 Trademax Global 撤回该批准，推荐人应立即停止分发这些宣传材料。

g. The Introducer must not respond on behalf of the Principal to any enquiries or requests for information received from the press relating to the Principal, unless from time to time notified otherwise by the Principal in writing, decline to answer and refer all such enquiries and requests to the Principal.
推荐人不可以代表 Trademax Global 回应来自媒体关于 Trademax Global 的任何询问或请求，除非收到 Trademax Global 的书面通知，否则应拒绝回答并将所有这些询问和请求转述给Trademax Global。

h. Introducer shall notify the Principal in writing, immediately upon becoming aware of any complaint or potential action/proceeding or regulatory investigation or sanction against the Introducer.
当推荐人发现任何针对推荐人的投诉、潜在的执行、诉讼或者监管调查或者处罚，应立即以书面形式通知 Trademax Global。

i. Duties in Relation to Regulator Request
与监管机构的要求有关的职责

i. Upon receipt of any communication issued by or on behalf of any other government agency or self-regulatory agency to the Introducer, any client of the Principal, the Introducer must give a copy of the communication promptly to the Principal.
推荐人、任何其推荐的客户一旦收到由政府机构或自我监管机构签署的信函， 推荐人必须立即向 Trademax Global 提供其复件。

ii. To the extent permitted by law, the Parties must assist each other in addressing any regulatory request by providing, immediately following receipt of a request in writing in that regard, a true copy of any and all correspondence, file notes, memoranda or other communication, notation or other written, electronic or recorded instrument in relation to the subject matter of the regulatory request in possess of the Introducer ("**Subject Documents**").
在法律允许的范围内，在收到监管机构的书面问询后，协议双方必须协助对方回复问询。推荐人在收到问询后，应立即提供其所保存的所有与问询相关的通信，文件，备忘录或其它书面或电子版文件，或录制材料（"**即主题文件**"）。

iii. In the event that any Subject Documents are in possession of a third party declines to hand over the Subject Documents in its possession to the Introducer, the Introducer must advise the Principal in writing of such refusal and must provide the name and address of the third party to the Principal whereupon the Principal may, in its absolute discretion, elect to directly contact such third party for the purpose of obtaining the subject Documents.
在即主题文件的第三方拒绝提供复件的情况下，推荐人必须书面通知 Trademax Global，并提供第三方的姓名和地址。Trademax Global 会自行决定是否直接同第三方联系以取得即主题文件。

j. The minimum amount that the Introducer can withdraw from his/her IB account is 100 in the same currency as their IB account, unless the IB account is closed, in which case the Introducer can withdraw the full balance in their IB account.
推荐人出金最低限额是 100 (币种同代理账号币种），除非当代理账户已关闭的情况下，推荐人可以全额出金已关闭代理账户中的 100 以下余额。

5. Principal's obligations
委托人的义务

a. The Principal must provide the Introducer with the policies, procedures, templates and

promotional materials with which it requires the Introducer to comply or to use.
Trademax Global 必须向推荐人提供要求其遵守的相关制度，流程，模板，和促销材料。

6. Remuneration
薪酬

a. The Introducer shall be paid for its services as agreed in this Agreement as per the below payment scheme:
Trademax Global 按以下支付方案向推荐人按协议规定提供的服务支付薪酬:

The commission will be paid in a one-day (T+1) settlement period, meaning once a trade executes and the commission is accrued, the settlement of the commission occurs one business day after the trade date (T+1). So, for example, if the commission is accrued on a Friday, it will be paid into the Introducer's IB account on Monday of the following week. In case of a holiday, it shall be automatically postponed to the first business day following the holiday.
佣金将在一天（T + 1）的结算期内支付，这意味着当执行了交易并产生了佣金之后，佣金的结算和支付将发生在交易日期之后的一个工作日（T + 1）。 因此，举例来说，如果佣金是在星期五产生的，那么它将在下周的星期一支付到推荐人的 IB 帐户中。如遇节假日则顺延至下一个工作日。

b. Payment of commission may, where applicable, be adjusted, when the amount calculated is less than 0.01 of one (1) unit of the currency of the Introducer's IB Account. All commission calculations shall be rounded to the nearest hundredth according to the standard rounding rules (for example, a rebate amount of 5.134 shall be rounded to 5.13, 5.135 shall be rounded to 5.14, 0.004 shall be rounded to 0, 0.005 shall be rounded to 0.01). For avoidance of doubt, any calculation commission amount that is less than 0.005 of one (1) unit of the currency of the Introducer's IB Account shall be deemed non-payable and will not be accumulated, carried forward, or paid. The Introducer acknowledges and accepts that minor rounding adjustments under this clause shall not constitute a breach or give rise to any claim or complaint against the Principal.
当计算金额低于介绍人IB账户结算货币单位的0.01时，佣金支付可根据舍入差异进行调整。所有佣金金额的计算应采用标准的“四舍五入”规则，保留至小数点后两位(例如，佣金金额5.134四舍五入到5.13，5.135四舍五入到5.14，0.004四舍五入到0，0.005四舍五入到0.01)。为避免歧义，任何计算结果低于介绍人IB账户结算货币单位 0.005 的佣金金额，视为不予支付，且该金额不予累计、结转或发放。介绍人确认并同意，依据本条款进行的微小舍入调整或上述极小金额的不支付行为，不构成本协议的违约，亦不得因此向公司提出任何索赔或投诉。

c. The Introducer shall be entitled to the fees as stated in the “Rebate Rate Setting” section on the “IB Profile” page in your TMGM IB Portal, which may be subject to the changes by the Principal with notice ten (10) days prior to the changes coming into force.

推荐人将会获取按 Trademax Global IB 门户网站 “IB Profile”页面中 “Rebate Rate Setting”部分中所述的佣金费用，且该佣金方案可能会发生变化，Trademax Global 会在变更前 10 日内以书面形式通知推荐人。

d. In the event of any dispute, or complaint from a Client, the Principal has the right to hold back any fees due to the Introducer until such issues are resolved.

在发生客户纠纷或投诉的情况下，Trademax Global 有权停止佣金的发放，直至纠纷或投诉得到解决。

e. In the event that the Principal identifies or suspects any abuse on the trading activity of the Introducer by himself or acting together, such as:

如果 Trademax Global 发现或怀疑推荐人本人，或与客户共同行动交易活动有任何滥用行为，例如:

i. Taking unfair advantage of the Principal’s introducing broker program and/or any other promotional programs, arbitrage conducts including but not limited to extracting the economic profits generated of any kind (including gifts given under a promotional program of the Trademax Globaly) without exposure to economic risks: and

不公平地利用Trademax Global 的介绍经纪人项目和/或任何其他促销项目，例如进行套利，例如在不承担经济风险的情况下提取任何形式的经济利润（包括根据 Trademax Global 促销项目赠送的礼物）:以及

ii. Opening and closing trades instantly for the purpose of generating commissions, or

即时开仓和平仓以产生佣金, 或

iii. Conducting any other abusive behaviour.

进行任何其他滥用或不当牟利行为。

f. The Principal reserves the right to place a time limitation on the Introducer’s and his/her clients’ (who are relevant to abuse) profile, close the trading account temporarily for investigation or permanently, cancel or forfeit any trading profits made by the relevant clients and/or the Introducer through the abuse, and/or withhold payment.

Trademax Global 保留对推荐人及其客户（与滥用有关）的个人资料设置时间限制、暂时关闭交易账户进行调查或永久取消或没收相关客户和/或推荐人通过滥用获得的任何交易利润和/或扣留付款的权利。

7. Amendment and Termination
协议的修改和终止

a. This Agreement may be amended by the Principal from time to time. The Principal shall notify the Introducer of any changes in the Agreement at least five (5) business days prior to the amendments coming into force. Should the Introducer disagree with the changes, he may terminate the Agreement in accordance with para. 7.C below.
Trademax Global 会不定时对此协议进行修改。Trademax Global 会在协议更改生效前的 5 个工作日内通知推荐人。如果推荐人对更改存在异议，推荐人有权按条款 7.C 相关规定终止协议。

b. The Principal may terminate the authority granted to the Introducer under this Agreement immediately without notice if the Introducer:
Trademax Global 有权在未告知的情况下终止对推荐人的授权，如果推荐人：

i. Breaches any legislation;
违反任何法律、法规；

ii. If the Principal reasonably suspects that the Introducer conducts any abuse on the Principal's introducing broker program or takes unfair advantage of the Principal;
如果 Trademax Global 合理怀疑推荐人对 Trademax Global 的介绍经纪人项目进行任何滥用或进行不公平利用;

iii. If the Principal reasonably considers that the Introducer commits any serious or persistent breach of any of the provisions of this Agreement or any policy or procedures with which the Principal from time to time requires the Introducer to comply;
如果 Trademax Global 有理由认为推荐人严重地或持续地违反协议相关规定或 Trademax Global 要求推荐人遵守的制度或流程；

iv. Duo to any malpractice, failure or other significant events, including liquidation or insolvency, on the part ofthe Introducer; and
由于任何推荐人方面的违规，破产或其它重大事件，包括清算，资不抵债；和

v. Where the Principal is advised of or identifies that the Introducer has promoted to any party that their relationship with the Principal is any greater than that provided in this Agreement.
当 Trademax Global 被告知或发现推荐人向第三方宣传其与 Trademax Global 的关系超出本协议规定的范围。

c. This Agreement may be terminated:
此协议有可能以以下方式被终止：

i. By either party giving the other party seven days' notice in writing; or
任一方提前 7 日向另一方发布书面终止通知；或

ii. If the Principal reasonably considers that Introducer is acting in a manner which is unprofessional, unethical or likely to harm the professional standing of the Principal, the Principal gives the Introducer 7 days' notice in writing.
如果 Trademax Global 有理由认为推荐人有任何违反职业标准，道德标准的行为或有可能对 Trademax Global 的专业地位造成损害，并提前7日给予书面通知。

d. The Introducer must notify the Principal immediately if any event occurs which would entitle the Principal to terminate this Agreement or suspend the authorities conferred by this Agreement.
当任何会造成 Trademax Global 终止协议或暂停授权的事件发生，推荐人应立即通知 Trademax Global。

e. On termination of this Agreement, the Introducer must:
在终止协议时，推荐人必须：

i. Return to the Principal all forms of documentation, promotional material, policies, procedures and templates that the Principal has provided to the Introducer for the purpose of this Agreement;
归还由 Trademax Global 提供的以履行此协议为目的所有 Trademax Global 文件，促销材料，制度，流程和模板；

ii. Immediately cease providing information about the Principal and how to contact the Principal; and
立即停止向第三方提供与 Trademax Global 有关的信息及联系方式；和

iii. Immediately pay any money due to the Principal and request payment of any remuneration due to the Introducer as at the termination of this Agreement.
立即返还在协议终止前对 Trademax Global 的任何欠款。

8. Governing Language
合同语言

a. This Agreement, as well as any additional agreement hereto (both present and future) are made in English. Any other language translations are provided as a convenience only. In the case of any inconsistency or discrepancy between the original English texts and their translation into any other language, the original versions in English shall prevail.
此协议及任何此协议的补充都由英语撰写。任何其它语言的译文仅为使用者提供阅读方便。如果英文条款与其它语言的译文有任何不一致或出入的地方，英文条款具有法律效力。

9. Applicable Laws and Place of Jurisdiction
适用法律及地区司法管辖权

a. This agreement and all transactional relations between the Principal and the Client are governed by the Lawof the Republic of Vanuatu.
此协议和所有此协议的译文都受到瓦努阿图共和国的管辖。

b. The Introducer and the Principal submit to the exclusive jurisdiction of the Republic of Vanuatu. To the avoidance of doubt, paragraph 9.A does not prevent the Principal from commencing the proceeding in any other relevant jurisdiction.
推荐人和 Trademax Global 同意接受瓦努阿图共和国专属管辖权。为避免疑义，条款 9.A 不限制 Trademax Global 向其它任何司法管辖区提交诉讼。

10. Confidential Information
保密信息

a. Except as required by law or by the regulatory authority, the Introducer must not divulge, allow to be divulged or make use of any Confidential Information other than for the purposes of this Agreement.
除非相关法律或监管需要，推荐人不得泄露，不得允许任何 Trademax Global 的机密信息被泄露，不得将机密信息用于非本协议规定的目的。

b. The Introducer shall treat the Confidential Information as confidential and take every reasonable precaution and use all reasonable efforts to prevent the unauthorised disclosure of the same. The Introducer agrees to take all steps reasonably necessary and appropriate to ensure that their employees, agents, and/or assistants treat all information as confidential and to ensure such employees, agents, and/or assistants are familiar with and observe at least the similar standards as under this clause to keep the information confidential.
推荐人应将机密信息视为机密信息，并采取一切合理的预防措施，并尽一切合理努力防止未经授权的披露。推荐人同意采取一切合理必要和适当的步骤，以确保其员工、代理人和/或助理将所有信息视为机密，并确保此类员工、代理人和/或助理熟悉并遵守至少与本条款类似的标准，以对信息保密。

c. This clause will survive the expiration or termination of this Agreement.
此条款在协议到期或终止情况下继续生效。

d. Upon termination of this Agreement, the Introducer must destroy or deliver to the Principal any Confidential Information that was made available or in the possession or control of the Introducer under or in anticipation of this Agreement.
本协议终止后，推荐人必须销毁或交付给 Trademax Global 根据本协议或预期由推荐人提供或拥有或控制的任何机密信息。

11. Consent

同意

a. The Principal may give or withhold approval or consent to be given under this Agreement at its absolute discretion. The Principal is not obliged to give the Introducer reasons for giving or withholding consent.

Trademax Global 有绝对酌情权作出或撤回根据此协议的批准或同意。Trademax Global 无须对作出或撤回同意向推荐人提供任何理由。

12. Indemnity

保证与赔款

a. The Introducer agrees to indemnity, and to keep indemnified the Principal against any costs, claims, losses, or demands (including legal costs and expenses on a full indemnity) that the Principal suffers directly or indirectly as a result of the Introducer's breach of this Agreement.

推荐人同意赔偿 Trademax Global，并就因推荐人违反本协议而直接或间接遭受的任何费用、索赔、损失或要求（包括法律费用和全额赔偿费用）向公司作出赔偿。

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(协议结束)

EXECUTED as an Agreement
协议被执行

Principal
委托人

Executed by **Trademax Global Limited** (VFSC 40356) in accordance with its Constitution in the presence of:

……
Signature/ Seal
签字/盖章

……
Date
日期

Introducer
推荐人

*[If an individual]
如个人推荐人

……
Signature of Introducer
推荐人签字

……
Full Name of Introducer
推荐人全名

……
Signature of Witness
鉴证人签字

……
Date
日期

*[If a company]
如公司推荐人

Executed by

In accordance with its Constitution in the presence of:

……	……
Director 董事	Director/Secretary 董事/秘书
……	……
Full Name (Print) 全名	Full Name (Print) 全名
……	……
Date 日期	Date 日期